SIMON MUPINDU
versus
SANDRA MUPINDU

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE, 6 February 2026

Matrimonial Action

T Magwaliba, for the Plaintiff
K Chimiti, for the Defendant

TSANGA J

Introduction

This is a matrimonial action in which the plaintiff instituted proceedings for divorce together with ancillary relief relating to custody, maintenance and the sharing of matrimonial property. The matter had been set down for continuation of hearing on the 5th of February 2026 following an earlier postponement granted at the instance of the plaintiff on the 14th of January 2026.

On the eve of the rescheduled hearing, the plaintiff unilaterally filed a notice of withdrawal of the entire action, without a tender of costs. The propriety of that withdrawal, and the question of costs, fell for determination by this court.

Background

At the previous hearing date, the plaintiff sought a postponement on the basis that further steps were required to properly ventilate the issues before the court. These included the procurement of a valuation report in respect of the immovable property forming part of the matrimonial estate, alleged changes in circumstances relating to custody, and the plaintiff's stated intention to subpoena the defendant's bankers in relation to certain banking records.

The court granted the postponement on the basis that, if attended to, these steps would facilitate the expeditious finalisation of the matter. Plaintiff's counsel was emphatic that the issues were straightforward and would not necessitate a lengthy delay.

Notwithstanding this, and without prior engagement with either the defendant or the court, the plaintiff filed a notice of withdrawal on 4 February 2026, which was one day before the matter was due to proceed.

Submissions by the Plaintiff

I heard the parties in chambers on the issue of the withdrawal on 5 February. Mr Magwaliba, who appeared for the plaintiff, submitted that the court should, in the exercise of its discretion, permit the withdrawal. He argued that this was a matrimonial matter with far-reaching personal consequences and that courts should be slow to refuse a withdrawal in such circumstances. The stated reason for the withdrawal was the plaintiff's desire to pursue possible negotiations with the defendant with a view to resolving the matter in a manner that would cause the least damage, even if divorce proceedings were to be re-instituted at a later stage.

On the issue of costs, counsel submitted that the pleadings define the issues between the parties. As the defendant had not sought costs in her plea and had not filed a counterclaim, granting costs upon withdrawal would, in his view, improperly introduce a new issue not raised on the pleadings. He contended that the issue of costs therefore did not arise and that the withdrawal ought to be allowed without an order as to costs.

Submissions by the Defendant

The defendant opposed the withdrawal. Mr Chimiti, who appeared on her behalf, submitted that once a matter has been set down, a withdrawal is not for the taking and remains subject to the discretion of the court. From the defendant's perspective, the marriage had irretrievably broken down and there were no realistic prospects of reconciliation or meaningful negotiations, particularly given that the plaintiff had since moved on with another partner.

He submitted further that since the summons were issued in 2024, the defendant had believed that the matter was moving steadily towards finalisation. She had not filed a counterclaim because she regarded the issues as straightforward and capable of determination by the court. In these circumstances, he urged the court to exercise its discretion in favour of finality of litigation and to refuse the withdrawal, allowing the matter to proceed.

In the alternative, should the court permit the withdrawal, he submitted that it should be with a tender of costs on a higher scale. Counsel relied on a persuasive authority, *Germishuys* v *Douglas Besproeiingsraad* 1973 (3) SA 299 (NC) which treats a withdrawal,

particularly after set down, as tantamount to a loss of the case, thereby entitling the opposing party to costs. There was, he argued, no guarantee that negotiations would ensue, especially in circumstances where the parties were not on speaking terms.

Reply by the Plaintiff

In reply, Mr Magwaliba submitted that to prevent a plaintiff from withdrawing his action in the absence of a counterclaim would amount to forcing litigation upon a party who no longer wished to pursue it. He further argued that in an environment where alternative dispute resolution is actively encouraged, the court ought to permit the withdrawal. If the defendant was intent on obtaining a divorce, she ought to have protected her position by filing a counterclaim.

As regards costs, he maintained that the defendant could not at this stage change her position, reiterating that costs were not an issue arising from the pleadings.

Issues for Determination

The issues for determination are therefore:

1. Whether the court should permit the withdrawal of the action after the matter had been set down; and
2. If so, whether such withdrawal should be with or without an order as to costs.

Analysis

Whether withdrawal should be permitted

It is settled law that once a matter has been set down, a plaintiff no longer enjoys an unfettered right to withdraw proceedings. The withdrawal is subject to the discretion of the court, which must be exercised judicially, having regard to the interests of justice, fairness to both parties, and the need for finality in litigation. See *Everjoy Meda* v *Maxwell Masvimbo Sibanda & Ors* CCZ10/16 and authorities cited therein where MALABA CJ explained thus:

> "While parties may at any time before a matter is set down, withdraw a matter, with a tender of costs the same does not hold true for a matter that has already been set down for hearing. Once a matter is set down, withdrawal is not there for the taking.
>
> The applicable principles are set out in Erasmus "*Superior Court Practice*" B1-304. A person who has instituted proceedings is entitled to withdraw such proceedings without the other party's concurrence and without leave of the court at any time before the matter is set down. The proceedings are those in which there is lis between the parties one of whom seeks

> redress or the enforcement of rights against the other. An application for appropriate relief on the grounds of alleged violation of a right is such a proceeding.
>
> Once a matter has been set down for hearing it is not competent for a party who has instituted such proceedings to withdraw them without either the consent of all the parties or the leave of the court. In the absence of such consent or leave, a purported notice of withdrawal will be invalid. The court has a discretion whether or not to grant such leave upon application. The question of injustice to the other parties is germane to the exercise of the court's discretion. It is, however, not ordinarily the function of the court to force a person to proceed with an action against his will or to investigate the reasons for abandoning or wishing to abandon one."

While matrimonial matters undoubtedly involve sensitive and far-reaching consequences, that consideration alone does not entitle a litigant to act unilaterally in a manner that disregards the position of the opposing party and the processes of the court.

In the present matter, the plaintiff sought and obtained a postponement on specific grounds, assuring the court that the outstanding issues were straightforward and that the postponement would expedite finalisation. It was therefore incumbent upon the plaintiff to proceed with the matter or, at the very least, to engage timeously and transparently with the defendant if his intentions had changed.

The filing of a notice of withdrawal on the eve of the hearing, without a tender of costs, and without prior engagement, falls short of the standard of conduct expected of litigants. That said, this court is also mindful that compelling a plaintiff to proceed with an action he no longer wishes to pursue, in the absence of a counterclaim, would serve little practical purpose and may result in further delay and prejudice. The defendant remains at liberty, should she so wish, to institute or pursue her own proceedings for divorce.

On Costs

On the issue of costs, this falls to be determined in the exercise of this court's discretion. The plaintiff's argument that costs do not arise because they were not pleaded is misconceived. Costs are a matter for the discretion of the court and do not require specific pleading. The general principle is that costs follow the event, and a withdrawal after set down is ordinarily treated as an abandonment of the claim, entitling the opposing party to her costs. In *Germishuys* v *Douglas Besproeiingsraad,* the principle is captured thus in the translated head note of the judgment:

> "Where a litigant withdraws an action or in effect withdraws it, very sound reasons must exist why a defendant or respondent should not be entitled to his costs. The plaintiff or applicant

> who withdraws his action or application is in the same position as an unsuccessful litigant because, after all, his claim or application is futile and the defendant, or respondent, is entitled **to all costs associated with the withdrawing plaintiff's or applicant's institution of proceedings**'. (My emphasis)

The manner in which the proceedings have been conducted cannot be ignored. The plaintiff sought and obtained a postponement of the hearing on the basis that certain outstanding matters required attention and that the indulgence sought would assist in coherently bringing the litigation to finality. It was also not the first postponement. The postponement sought before me was granted at the plaintiff's instance. Notwithstanding this, the plaintiff thereafter elected to withdraw the action on the eve of the rescheduled hearing, without prior engagement with the defendant and without a tender of costs.

This course of conduct occasioned further delay and expense and caused prejudice to the defendant, who had prepared for the continuation of the hearing in the reasonable expectation that the matter would proceed. While the court accepts that parties in matrimonial disputes may reassess their positions, particularly where alternative resolution is contemplated, such reassessment must be undertaken in a manner that is fair to the other party and respectful of the court process.

I remain mindful that this is a matrimonial matter, in which considerations of fairness and proportionality are of particular importance. In the circumstances, the court is of the view that an award of costs on the ordinary scale would sufficiently address the prejudice occasioned to the defendant. It would reflect the consequences of the plaintiff's procedural choices.

Disposition

1. The plaintiff's withdrawal of the action is permitted.
2. The plaintiff shall pay all the defendant's costs on the ordinary for the entire matter.

TSANGA J:……

Mupindu Legal Practitioners, plaintiffs' legal practitioners
Machaya and Associates, defendant's legal practitioners